

24TRCV02774 24TRCV02774

County: los-angeles

Division: Civil Law and Motion

Department: 5

Hearing date: 2026-07-15

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Case Number: 24TRCV02774 Hearing Date: July 15, 2026 Dept: 5

Superior Court of California

County of Los Angeles – SOUTHWEST District

Department

5

JUAN MANUEL JIMENEZ

;

Plaintiff,

vs.

contemporary services

corporation

, et al.;

Defendants.

Case

No.:

24TRCV02774

Hearing

Date:

July
15, 2026

Time:

8:30 a.m.

[tentative]

Order RE:

(1)

DEFENDANT LEGENDS HOSPITALITY, LLC'S DEMURRER
TO PLAINTIFF JUAN MANUEL JIMENEZ' SECOND AMENDED COMPLAINT

(2)

DEFENDANT LEGENDS HOSPITALITY, LLC'S MOTION TO
STRIKE PORTIONS OF PLAINTIFF JUAN MANUEL JIMENEZ'S SECOND AMENDED COMPLAINT

MOVING PARTY: Defendant, Legends Hospitality,
LLC

RESPONDING PARTY: No opposition.

(1)

Defendant

Legends Hospitality, LLC's Demurrer to Plaintiff

Juan Manuel Jimenez' Second Amended Complaint is SUSTAINED pursuant to Code of
Civil Procedure section 430.10.

(2)

Defendant

Legends Hospitality, LLC's Motion to

Strike Portions of Plaintiff Juan Manuel Jimenez' Second Amended Complaint is DENIED
pursuant to Code of Civil Procedure sections 435 and 436.

The Court considers the moving
papers filed on June 8, 2026, and the notice of errata filed on June 15, 2026. To date, no opposition brief has been filed.

BACKGROUND

Factual Background

On August 20, 2024, plaintiff

Juan Manuel Jimenez ("Plaintiff") filed the Complaint against the following defendants: Stadco LA, LLC; Contemporary Services Corporation ("CSC"); Hollywood Park Land Company, LLC; Hollywood Park Management Company, LLC; Pincay RE, LLC; Jason Gannon; and DOES 1 through 50. On March 18, 2025, Plaintiff filed the First Amended Complaint ("FAC") against the same defendants, alleging two causes of action: (1) General Negligence and (2) Intentional Tort. The second cause of action was asserted against CSC and DOES 1 through 50.

On May 28, 2025, the Court

sustained CSC's demurrer to Plaintiff's second cause of action for intentional tort and granted CSC's motion to strike the requests for punitive and exemplary damages. (May 28, 2025 Minute Order, pp. 3, 6.) The Court granted Plaintiff leave to amend this cause of action and the request for punitive and exemplary damages. (May 28, 2025 Minute Order, p. 6.)

On June 13, 2025, Plaintiff

filed the Second Amended Complaint against the same defendants. In this complaint, Plaintiff asserted six causes of action (1) Negligence; (2) Assault; (3) Battery; (4) Intentional Infliction of Extreme Emotional Distress; (5) Civil Code § 51.7 (Ralph Act); and (6) Civil Code § 52.1 (Bane Act). However, on December 16, 2025, the Court struck out the second, third, fourth, fifth, and sixth causes of action, which included allegations and claims for punitive damages, after determining that it had not granted Plaintiff leave to include these new causes of action. (December 16, 2025 Minute Order, p. 5.)

On March 18, 2026, the Court

granted Plaintiff leave to file the Second Amended Complaint ("SAC") with the new causes of action. (March 18, 2026 Minute Order, p. 5.) Subsequently, on March 23, 2026, Plaintiff filed the amended SAC against the following defendants: Contemporary Services Corporation ("CSC"); Hollywood Park Land Company, LLC; Hollywood Park Management Company, LLC; Pincay RE, LLC; Stadco LA, LLC; Alfred Anthony; Legends Hospitality LLC ("Legends"); and DOES 1

through 50. This amended complaint includes the following six causes of action: (1) General Negligence; (2) Battery; (3) Assault; (4) Intentional Infliction of Extreme Emotional Distress; (5) Civil Code § 51.7 (Ralph Act); and (6) Civil Code § 52.1 (Bane Act).

On May 1, 2026, Plaintiff filed a proof of service indicating that their registered process server personally served Legends on April 30, 2026, at 1:40 a.m. (May 1, 2026, PoS, ¶¶ 2-5.)

On June 2, 2026, Legends' counsel sent an email to Plaintiff's counsel, outlining the alleged deficiencies referenced in the demurrer and motion to strike, and requesting additional time to file a responsive pleading. (Declaration of Robert L. Davis re: Demurrer ("Davis Decl. re: Dem."), ¶ 5, Exh. D; Declaration of Robert L. Davis re: Motion to Strike ("Davis Decl. re: MTS."), ¶ 2, Exh. A.) Legends' counsel further asserted that Plaintiff's counsel "granted, through Gallagher Basset, an extension to June 7 for Legends to file a responsive pleading (a Sunday, making a responsive pleading due June 8)." (Davis Decl. re: Dem., ¶ 5, Exh. D; Davis Decl. re: MTS., ¶ 2, Exh. A.)

On the same day, Plaintiff's counsel responded, affirming that Plaintiff's allegations were sufficient and denying the request for an extension. (Davis Decl. re: Dem., ¶ 6, Exh. E; Davis Decl. re: MTS., ¶ 3, Exh. B.) Additionally, Plaintiff's counsel stated, "My office did not agree to extend Legends' time to file a responsive pleading generally. The extension we granted through Gallagher Bassett was limited to extending Legends' deadline to file and serve an Answer." (Davis Decl. re: Dem., ¶ 6, Exh. E; Davis Decl. re: MTS., ¶ 3, Exh. B.)

Legends' counsel maintains that the parties were unable to communicate via telephone or in person. (Davis Decl. re: Dem., ¶ 7; Davis Decl. re: MTS., ¶ 4.)

MEET AND CONFER REQUIREMENT

Before filing a demurrer or motion to strike, the moving party is required to meet and confer in person, by

telephone, or via video conference with the party that filed the pleading that is subject to the motion to determine whether an agreement can be reached that would resolve the objections to be raised in the demurrer or motion to strike. (Code Civ. Proc., §§ 430.41, subd. (a), 435.5, subd. (a).) The parties are to meet and confer at least five days before the date the responsive pleading is due. (Code Civ. Proc., §§ 430.41, subd. (a)(2), 435.5, subd. (a)(2).) Thereafter, the moving party shall file and serve a declaration detailing their meet and confer efforts. (Code Civ. Proc., §§ 430.41, subd. (a)(3), 435.5, subd. (a)(3).) A determination by the court that the meet and confer process was inadequate shall not be grounds to overrule or sustain a demurrer, or to grant or deny a motion to strike. (Code Civil Proc., §§ 430.41, subd. (a)(4), 435.5, subd. (a)(4).)

On June 2, 2026, Legends' counsel sent an email to Plaintiff's counsel, outlining the alleged deficiencies referenced in the demurrer and motion to strike, and requesting additional time to file a responsive pleading. (Davis Decl. re: Dem., ¶ 5, Exh. D; Davis Decl. re: MTS., ¶ 2, Exh. A.) Legends' counsel further asserted that Plaintiff's counsel "granted, through Gallagher Basset, an extension to June 7 for Legends to file a responsive pleading (a Sunday, making a responsive pleading due June 8)." (Davis Decl. re: Dem., ¶ 5, Exh. D; Davis Decl. re: MTS., ¶ 2, Exh. A.)

On the same day, Plaintiff's counsel responded, affirming that Plaintiff's allegations were sufficient and denying the request for an extension. (Davis Decl. re: Dem., ¶ 6, Exh. E; Davis Decl. re: MTS., ¶ 3, Exh. B.) Additionally, Plaintiff's counsel stated, "My office did not agree to extend Legends' time to file a responsive pleading generally. The extension we granted through Gallagher Bassett was limited to extending Legends' deadline to file and serve an Answer." (Davis Decl. re: Dem., ¶ 6, Exh. E; Davis Decl. re: MTS., ¶ 3, Exh. B.)

Legends' counsel maintains that the parties were unable to communicate via telephone or in person. (Davis Decl. re: Dem., ¶ 7; Davis Decl. re: MTS., ¶ 4.)

Although the parties did not engage in the meet-and-confer process as required, the Court will still consider the merits of the motion. An insufficient meet-and-confer process is not a valid reason to overrule or sustain a demurrer or to grant or deny a motion to strike.

DEMURRER

Legal Standard

A demurrer can be used only to challenge defects that appear on the face of the pleading under attack or from matters outside the pleading that are judicially noticeable. (*Blank v. Kirwan* (1985) 39 Cal.3d 311, 318.) "To survive a demurrer, the complaint need only allege facts sufficient to state a cause of action; each evidentiary fact that might eventually form part of the plaintiff's proof need not be alleged." (*C.A. v. William S. Hart Union High School Dist.* (2012) 53 Cal.4th 861, 872.) For the purpose of testing the sufficiency of the cause of action, the demurrer admits the truth of all material facts properly pleaded. (*Aubry v. Tri-City Hospital Dist.* (1992) 2 Cal.4th 962, 966-967.) A demurrer "does not admit contentions, deductions or conclusions of fact or law." (*Daar v. Yellow Cab Co.* (1967) 67 Cal.2d 695, 713.)

A pleading is uncertain if it is ambiguous or unintelligible. (Code Civ. Proc., § 430.10, subd. (f).) A demurrer for uncertainty may lie if the failure to label the parties and claims renders the complaint so confusing that the defendant cannot tell what he or she is supposed to respond to. (*Williams v. Beechnut Nutrition Corp.* (1986) 185 Cal.App.3d 135, 139, fn. 2.) However, "[a] demurrer for uncertainty is strictly construed, even where a complaint is in some respects uncertain, because ambiguities can be clarified under modern discovery procedures." (*Khoury v. Maly's of California, Inc.* (1993) 14 Cal.App.4th 612, 616.)

Discussion

Legends demurs to: (1)

Plaintiff's fourth cause of action for intentional infliction of emotional distress, asserting that the SAC does not contain sufficient facts to support

the claim; (2) Plaintiff's fifth cause of action for Civil Code § 51.7 (Ralph Act), asserting that the SAC does not contain sufficient facts to support the claim; (3) Plaintiff's sixth cause of action for Civil Code § 52.1 (Bane Act), asserting that the SAC does not contain sufficient facts to support the claim; and (4) Plaintiff's first, second, fourth, fifth, and sixth causes of action against Legends, contending that they are barred by Code of Civil Procedure section 335.1. (Notice of Dem., p. 2:1-18.) The Court concurs with Legends' final argument and, consequently, will not address the first three arguments presented by Legends.

Statute of Limitations

Legends contends that all claims brought against it are time-barred pursuant to Code of Civil Procedure section 335.1. (Dem., pp. 9:21-11:19.)

"Within two years: An action for assault, battery, or injury to, or for the death of, an individual caused by the wrongful act or neglect of another."
(Code Civil Proc., § 335.1.)

Plaintiff asserts five causes of action against Legends: (1) General Negligence; (2) Assault; (3) Intentional Infliction of Extreme Emotional Distress; (4) Civil Code § 51.7 (Ralph Act); and (5) Civil Code § 52.1 (Bane Act). (SAC, pp. 8-9, 13-23.) Each of these claims relates to personal injury, which invokes the statute of limitations.

Here, the Plaintiff alleges that the incident in question occurred on August 20, 2022. (SAC, ¶ 30.) Consequently, Plaintiff was required to file his claims against Legends no later than August 20, 2024. However, Plaintiff did not name Legends as a defendant until he filed his SAC on March 18, 2026. Therefore, Plaintiff's claims are deemed untimely and barred by the statute of limitations, unless tolling or the relate-back doctrine applies. Plaintiff failed to file an opposition brief to refute Legends contentions. As such, Legends' demurrer with respect to the first, second, fourth, fifth, and sixth causes of action is SUSTAINED.

MOTION TO STRIKE

Legal Standard

Any party, within the time allowed to respond to a pleading, may serve and file a notice of motion to strike the whole or any part thereof. (Code Civ. Proc., § 435, subd. (b)(1).) The court may, upon a motion, or at any time in its discretion, and upon terms it deems proper, strike any irrelevant, false, or improper matter inserted in any pleading. (Code Civ. Proc., § 436, subd. (a); *Stafford v. Shultz* (1954) 42 Cal.2d 767, 782 [“Matter in a pleading which is not essential to the claim is surplusage; probative facts are surplusage and may be stricken out or disregarded”].) The court may also strike all or any part of any pleading not drawn or filed in conformity with California law, a court rule, or an order of the court. (Code Civ. Proc., § 436, subd. (b).) An immaterial or irrelevant allegation is one that is not essential to the statement of a claim or defense; is neither pertinent to nor supported by an otherwise sufficient claim or defense; or is a demand for judgment requesting relief not supported by the allegations of the complaint. (Code Civ. Proc., § 431.10, subd. (b).) The grounds for moving to strike must appear on the face of the pleading or by way of judicial notice. (Code Civ. Proc., § 437.)

Discussion

Legends seek to strike the following: (1) references to exemplary or punitive damages; (2) all claims for civil/statutory penalties; and (3) all claims for attorneys' fees. (MTS, pp. 4:2-7:18.) However, these requests have been rendered moot, as the Court has sustained Legends' demurrer as discussed above. Accordingly, Legends' motion to strike is DENIED as moot.

ORDERS

1)
Defendant Legends Hospitality, LLC's Demurrer to
Plaintiff Juan Manuel Jimenez' Second Amended Complaint is SUSTAINED.

2)
Defendants Legends Hospitality, LLC's Motion to

Strike Portions of Plaintiff Juan Manuel Jimenez' Second Amended Complaint is
DENIED.

3)

Legends is ordered to give notice of this
Court's ruling.

IT IS SO ORDERED.

DATED: July 15, 2026

Tamara
Hall

Judge
of the Superior Court